

2:00 PM

LINE: 4

25-CIV-04433

EDMUND LEE VS. HENGDA CONSTRUCTION INC., A CALIFORNIA CORPORATION

**EDMUND LEE
HENGDA CONSTRUCTION INC., A CALIFORNIA CORPORATION**

**MOHAMMED KASHEF
JAMES HUAN LY**

PLAINTIFF EDMUND LEE'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Plaintiff Edmund Lee's December 29, 2025 pro per motion for leave to file a Second Amended Complaint is **DROPPED AS MOOT**.

Plaintiff's motion for leave to file a Third Amended Complaint is **GRANTED**.

The record reflects that, after the Court sustained Defendant's demurrer to the First Amended Complaint with leave to amend on March 11, 2026, Plaintiff filed a Second Amended Complaint. Plaintiff, now represented by counsel, seeks leave to file a Third Amended Complaint. The proposed amendment narrows the case by dropping several previously challenged causes of action, restructures the breach-of-contract claim, updates damages allegations, removes an individual defendant, and adds a statutory claim under Business and Professions Code section 7159.

The motion substantially complies with California Rules of Court, rule 3.1324. The supporting declaration identifies the effect of the proposed amendment, why it is necessary and proper, when the facts giving rise to the amended allegations were discovered or reviewed, and why the request was not made earlier. No trial date has been set, no discovery cutoff has been set, and Defendant has not shown cognizable prejudice from the proposed amendment.

Plaintiff shall file and serve the Third Amended Complaint, in the form attached as Exhibit A to the Declaration of Mohammed Kashef, within 10 days after service of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Gate Group, Inc. shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 5

25-CIV-04466

MOHAMMAD M KANNA VS. VINDULA RAGHBIR, ET AL

MOHAMMAD M KANNA
VINDULA RAGHBIR

ANDREA DIAZ
STEPHEN E BAUMANN

DEFENDANT GATE GROUP, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendant Gate Group, Inc.'s demurrer to Plaintiff Mohammad M. Kanna's First Amended Complaint is **OVERRULED IN PART** and **SUSTAINED IN PART WITH LEAVE TO AMEND**.

The demurrer is **OVERRULED** as to the Fourth Cause of Action for failure to engage in the interactive process and the Sixth Cause of Action for wrongful termination in violation of public policy. The demurrer is **SUSTAINED WITH LEAVE TO AMEND** as to the First Cause of Action for disability harassment, Second Cause of Action for disability discrimination, Third Cause of Action for failure to accommodate, and Fifth Cause of Action for failure to prevent harassment, discrimination, or retaliation.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

PRELIMINARY MATTERS

The moving notice identified the prior department and hearing location. The matter was later reassigned to Department 2. The opposition and reply identify the correct department and hearing time, and the parties appear to have notice of the current hearing. To the extent the earlier notice contained an incorrect department or location, the Court finds no prejudice requiring the demurrer to be dropped from calendar. (See Cal. Rules of Court, rule 3.1110(b)(1).)

The Court also finds that Defendant substantially complied with Code of Civil Procedure section 430.41. Defense counsel met and conferred with Plaintiff's counsel regarding the original complaint and proposed amended pleading and later sent a further letter addressing the First Amended Complaint. In any event, an insufficient meet-and-confer process is not a ground to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

BACKGROUND

This employment action arises from Plaintiff's former employment with Gate Group, Inc. Plaintiff alleges that, while working as an executive chef, he was struck in the head when a roll-up door in the kitchen area unexpectedly closed. Plaintiff alleges the incident caused a concussion, cervical-spine injuries, and post-traumatic stress disorder. (FAC, ¶¶ 19-21.)